

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

KEITH JOSEPH KRACH,

Petitioner

VS.

METTA GROKENBERGER KRACH,

Respondent

) Case Number: FDI-24-799139

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ACCESS TO 2701 BROADWAY, SAN FRANCISCO, CA; REQUEST FOR  
ORDER RE: CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, ORDERS RE  
MS ACCOUNTS HELD BY KEITH J. KRACH TRUST; REQUEST FOR ORDER: ORDER FOR  
COURT AUTHORIZATION FOR ADDITIONAL MARGIN LOAN TO PURCHASE REAL  
PROPERTY; REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, EX PARTE  
ATTORNEY FEE DISTRIBUTION PER PARTIES' AGREEMENT

**TENTATIVE RULING**

The parties are Petitioner Keith Joseph Krach and Respondent Metta Grokenberger Krach. They share  
two minor children: Emma Katherine Krach (DOB: 9/24/11) and John David Krach (DOB: 9/24/11).

There are currently five pending motions on for hearing on 8/6/26. Having read and considered the  
pleadings, declarations, and other evidence submitted in this matter, the Court makes the following  
findings and orders:

**I. Request for Order Filed 2/25/26:**

On 2/25/26, Respondent filed a Request for Order seeking bifurcation and termination of marital status.

This matter was resolved by Stipulation and Order filed 7/23/26, which provides the parties' agreement to  
bifurcation and termination of marital status. A Status Only Judgment was entered 7/23/26.

1 **II. Request for Order Filed 3/23/26:**

2 **A. Procedural History**

3 1) On 3/23/26, Respondent filed a Request for Order seeking termination of temporary spousal  
4 support and child support and an order that each party receive an uncharacterized distribution of  
5 \$916,667 per month (\$11,000,000 annually) from the parties' Morgan Stanley accounts (which  
6 Respondent asserts is the approximate amount that Petitioner unilaterally distributed to himself in  
7 2024 and in 2025). Respondent requests the Court reserve jurisdiction over the characterization of  
8 these distributions. Respondent requests the Court make additional orders regarding the parties'  
9 Morgan Stanley accounts including:

- 10 a. Order Petitioner to direct Morgan Stanley to convert all the Morgan Stanley accounts that  
11 he directed Morgan Stanley to put in his name alone (this includes, but is not limited to,  
12 accounts ending \*2891, \*5716, \*3960, \*2309, \*2310, \*1184, \*1193, and \*\*025 –  
13 collectively referred to herein as the “non-Trust Accounts”) to joint accounts held by both  
14 parties.  
15 b. Prohibit transfer or withdraw of any assets (including, but not limited to, cash or  
16 securities) from any Morgan Stanley accounts, including the Trust Accounts and Non-  
17 Trust Accounts, without the other party's prior written consent.

18 2) On 5/12/26, Petitioner filed a Responsive Declaration and Memorandum of Points and  
19 Authorities in opposition to Respondent's Request for Order. Petitioner requests the Court  
20 maintain the 11/22/24 orders for child and spousal support and the 1/6/26 orders regarding the  
21 Morgan Stanley accounts at issue.

22 3) On 5/18/26, Respondent filed a Reply Declaration and supportive pleadings reiterating her  
23 requests.

24 **B. Findings and Order**

- 25 1) Respondent's request for termination of temporary spousal support and child support and an order  
26 that each party receive an uncharacterized distribution of \$916,667 per month (\$11,000,000  
27 annually) from the parties' Morgan Stanley accounts is DENIED without prejudice.  
28 2) The Court declines to issue an order directing Petitioner to convert all Morgan Stanley accounts  
29 to joint title.

- 3) The Court declines to issue any additional orders regarding restrictions on the Morgan Stanley accounts.
- 4) The Court reserves jurisdiction over all issues in Respondent's 3/23/26 Request for Order to the time of trial.

### **III. Request for Order Filed 5/7/26:**

#### **A. Procedural History**

- 1) On 3/10/25, Petitioner filed a Request for Order seeking access to the family residence located at 2701 Broadway San Francisco, CA for the purpose of taking inventory of the furniture and furnishings and retrieving personal belongings, heirlooms, business documents, and other items that remain in the property. Petitioner asserts that it is necessary he be allowed to take inventory to properly value and divide the estate. Petitioner states that since his departure from the Broadway residence, he has never been provided with a full inventory of his belongings, nor has Respondent facilitated a structured process for retrieval. Petitioner further requests that Respondent not pack or move Petitioner's belongings so Petitioner can verify them himself.
- 2) On 7/24/25, the Court granted Petitioner's Request for Order. The Findings and Order After Hearing (filed 8/20/25) states:
  - a. Mother shall not move or box up any more of Father's items at the Broadway residence without first obtaining Father's written permission.
  - b. The Court's jurisdiction to allocate the cost Mother has incurred to have Father's items professionally boxed to date is reserved.
  - c. The parties shall meet and confer regarding a date and location for Mother to deliver to Father his personal belongings that she represents have already been boxed. The parties shall share equally any cost incurred for the delivery (Father shall advance the cost). The items shall be delivered no later than Friday, 8/1/2025.
  - d. After reviewing the items in the boxes, Father shall provide to Mother, through counsel, a list of items or categories of items that he would still like to retrieve from the Broadway residence. Mother shall let Father know which items from the list she agrees Father may

1 take. This process shall be completed no later than 8/22/2025. The Court's jurisdiction to  
2 resolve any disputes regarding items Mother does not agree Father may take is reserved.

- 3 e. The parties shall meet and confer regarding a date and time for Father to enter the  
4 Broadway residence for a period of 3 hours. The parties shall also meet and confer to  
5 identify a third party who will be present with Father while he is in the Broadway  
6 residence. Mother must permit Father to enter the Broadway residence no later than  
7 9/15/2025. Before Father enters the Broadway residence, so that Father will not need to  
8 use the time he is in the residence to box items, Mother shall box up the items from  
9 Father's list that Mother agreed he could take and have those boxes placed in the garage  
10 for retrieval (if Mother incurs a cost for this task, the cost shall be shared equally and  
11 Father shall advance the cost). When Father enters the Broadway residence, he shall  
12 retrieve the items or categories of items that Mother agreed Father may take from  
13 Father's list. For any other items Father wishes to take which Mother did not agree in  
14 advance he could take (which may or may not have been on his list), Father must  
15 photograph the items. After Father's visit to the Broadway residence, he shall send  
16 Mother an inventory of those items and photographs, and the parties shall meet and  
17 confer after Father's visit to the Broadway residence regarding the additional items  
18 Father wishes to take. The children shall not be present when Father is in the Broadway  
19 residence.

- 20 3) On 5/7/26, Petitioner filed a new Request for Order seeking access to the 2701 Broadway  
21 property. Petitioner states that Respondent and Respondent's attorneys refused to allow him to  
22 schedule a time to enter the property. Petitioner claims that Respondent and Respondent's  
23 attorneys would only allow entry on 9/15/25, Respondent's deadline to let Petitioner into the  
24 home. Petitioner was also scheduled to be out of town that day. Petitioner requests that the Court  
25 issue the following orders:

- 26 a. Grant Petitioner access to the family residence on a specified date and time, for a period  
27 of no less than five (5) hours;  
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- 1           b. Grant Petitioner's request to bring assistant Daniela Bin and/or family law counsel, as  
2           well as a licensed appraisal/inventory company, the cost of which will be borne solely by  
3           Petitioner;
- 4           c. Grant Petitioner's request for access to the entire home during any court-ordered time at  
5           the family residence;
- 6           d. Clarify that such access shall not be subject to unilateral limitations or conditions by  
7           Respondent; and
- 8           e. Grant Petitioner's request to reserve jurisdiction over the issue of Family Code Section  
9           271 sanctions as it relates to Respondent's failure to cooperate with the Court's Findings  
10          and Order After Hearing filed on 8/20/25.
- 11       4) On 7/24/26, Respondent filed Responsive Declaration of Michael J. Wess in Opposition to  
12       Petitioner's Request for Access to the Broadway Property. Respondent's attorney Michael J.  
13       Wess states that it was Petitioner who would not comply with the Court's order through repeated  
14       attempts to exceed the scope of the order by giving himself and third parties full access to  
15       Respondent and the minor children's private bedrooms, bathrooms, and closets. Respondent  
16       requests that the Court issue the following orders:
- 17           a. Deny each of Petitioner's requests in his Request for Order filed 5/7/26;
- 18           b. Order that Petitioner may enter the Broadway property pursuant to the Findings and  
19           Order After Hearing filed 8/20/25 with only one family law attorney of his choosing; and
- 20           c. Order that Petitioner may not enter the personal areas of Respondent and the children  
21           during the walkthrough, including their bedroom, bathrooms, and drawers/closets in  
22           which they keep their personal belongings.
- 23       5) On 7/30/26, Petitioner filed a Reply Declaration in Support of his Request for Access to the  
24       Broadway Property. Petitioner reiterates his requests stated in the 3/10/25 and the 5/7/26 Request  
25       for Orders, except for the following:
- 26           a. Petitioner amends the request for access to the entire home during any court-ordered time  
27           at the family residence to reflect that he will not access Respondent's bedroom or the  
28           children's bedrooms.
- 29

6) On 7/31/26, Petitioner filed Evidentiary Objections to the 7/24 Declaration of Michael Wess. Petitioner states the Declaration fails to comply with Code of Civil Procedure section 2015.5 and Family Code section 212.

#### **B. Findings and Order**

- 1) As a preliminary issue, Petitioner's Evidentiary Objections to the Declaration of Michael Wess are SUSTAINED and Motion to Strike is GRANTED. The Court did not consider the Responsive Declaration filed 7/24/26.
- 2) In proceeding to the merits of Petitioner's Request for Order filed 5/7/26, the Court rules as follows:
- 3) Petitioner's request that the Court allow him access to the family residence on a specified date and time, for a period of no less than five (5) hours is GRANTED.
- 4) Petitioner's request to bring his assistant Daniela Bin and/or family law counsel, as well as a licensed appraisal/inventory company, the cost of which will be borne solely by Petitioner is GRANTED.
- 5) Petitioner's request for access to the entire home during any court-ordered time at the family residence is GRANTED.
- 6) Petitioner's request that the Court clarify that such access shall not be subject to unilateral limitations or conditions by Respondent is GRANTED.
- 7) Petitioner's request to reserve jurisdiction over the issue of Family Code Section 271 sanctions as it relates to Respondent's failure to cooperate with the Court's Findings and Order After Hearing filed on 8/20/25 is GRANTED.
- 8) Counsel shall meet and confer by close of business Monday, 8/10/26 to coordinate the date of entry.

#### **IV. Request for Order Filed 5/22/26:**

##### **A. Procedural History**

- 1) On 5/22/26, Respondent filed a Request for Order and supportive pleadings seeking authorization to obtain a \$8,600,000 margin loan from Morgan Stanley to purchase real property 823 Phelps Place NW, Washington D.C., 20008 (Phelps Property).

- 2) On 7/22/26, Petitioner filed a Responsive Declaration asserting that he believes the issue is moot based on the parties' agreement to permit each party to increase their Liquidity Access Line (LAL) to \$9,000,0000.
- 3) On 7/30/26, Respondent filed a Reply Declaration agreeing that the issue regarding the margin line of credit is resolved but asserting that the parties have been unable to agree on how to pay the substantial interest accruing on their respective LALs. Respondent requests both parties be permitted to pay said monthly interest directly from his or her share of community assets held at Morgan Stanley.
- 4) On 8/4/26, Petitioner filed Evidentiary Objections to the Declaration of Ramon Montijo JR., ESQ, Signed July 30, 2026. Petitioner states the Declaration fails to comply with Code of Civil Procedure section 2015.5 and Family Code section 212.
- 5) The Court notes this matter was improperly set in Dept. 404 on 8/4/26; therefore, the matter was continued to Dept. 403 (i.e., the proper home department) on 8/6/26.

#### **B. Findings and Order**

- 1) As a preliminary issue, Petitioner's Evidentiary Objections to the Declaration of Ramon Montijo JR., ESQ, Signed July 30, 2026 are SUSTAINED and Motion to Strike is GRANTED. The Court did not consider the Reply Declaration filed 8/4/26.
- 2) The Court finds Respondent's request is MOOT as the parties agree Respondent received a LAL to \$9,000,0000.

#### **V. Request for Order Filed 7/22/26:**

##### **A. Procedural History**

- 1) On 7/22/26, Respondent filed an ex parte Request for Order seeking: (a) letter of authorization for Morgan Stanley to carry out the liquidation and distribution of \$800,000 to Respondent as attorney's fees; and (b) a standing 48-hour mechanism be established to satisfy future fee requests.
- 2) On 7/22/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner requests the Court deny Respondent's request relief or that the issue of

1 distribution of attorney's fees be heard as a regularly noticed motion with updated Income and  
2 Expense Declarations submitted by both parties.

3 3) On 7/22/26, the Court DENIED Respondent's request for emergency relief pending hearing set  
4 for 8/6/26.

5 4) On 8/4/26, Respondent filed a Reply Declaration reiterating her requests.

6 **B. Findings and Order**

7 1) Petitioner shall immediately execute a letter of authorization for Morgan Stanley to carry out the  
8 liquidation and distribution of \$800,000 to Respondent for attorney's fees pursuant to "Option 1"  
9 (i.e., Harvest BDP/ money market from all community accounts and make up any shortfall by  
10 selling shares of the ARISTOTLE VALUE EQUITY).

11 2) Petitioner shall include in this letter that, pending further agreement of the parties or Court order,  
12 Respondent's requests for attorney's fees shall be satisfied within 48 hours by Morgan Stanley at  
13 the advice of Morgan Stanley for the best method to generate the requested funds.

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15 **Preparation of Order:** Counsel for Respondent shall prepare the Findings and Order After Hearing. If  
16 you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing  
17 you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the  
18 procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the  
19 matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit  
20 the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it  
21 to the court in accordance with CA Rules of Court, Rule 5.125(d),  
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